



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

APR 25 2003

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 10372
(FOURTH REVISION)

EXPIRATION DATE: March 31, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Air Products and Chemicals, Inc.
Allentown, PA
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the use of a non-DOT specification stainless steel, full removable head "salvage" cylinder of 78-gallon capacity for overpacking damaged or leaking packages of pressurized and non-pressurized hazardous materials. This exemption provides no relief from any Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.24, 173.40, 173.115, 173.226, 173.227, 173.302a, 173.304a and 180.205 except as specified herein.
5. BASIS: This exemption is based on the application of Air Products and Chemicals, Inc. dated April 4, 2003, submitted in accordance with § 107.109.

APR 25 2003

Continuation of DOT-E 10372 (4th rev.)

Page 2

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Those flammable gases (except acetylene), nonflammable gases, toxic materials and flammable liquids authorized in DOT specification cylinders*	2.1, 2.2, 2.3, 6.1 and 3	as appro- priate	as appro- priate

*The specific chemical name or generic commodity description, as appropriate.

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a non-DOT specification, austenitic stainless steel full removable head "salvage" cylinder of welded construction, with provisions for securely positioning the damaged cylinder contained within. The "salvage" cylinder must be designed, constructed and stamped in accordance with Section VIII of the ASME Code for a maximum allowable working pressure of 700 psig. The cylinder must be in accordance with Air Products and Chemicals, Inc.'s Drawing Nos. 310874D, Rev. 1 and 310874D, Rev. 2 dated July 27, 1989, on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA) and the following:

Maximum volume	78 gallon water capacity
Material	SA 240 type 304L stainless steel.
Design stress	16600 psi (at service pressure)
Outside diameter	20 inches
Length	76-13/16 inches
Sidewall thickness	13/16-inch, minimum
Service pressure (MAWP)	700 psig
Test pressure	1060 psig

APR 25 2003

Continuation of DOT-E 10372 (4th rev.)

Page 3

Openings-sidewall	Three-3/4" for drain and pump out. Two-1/2" for N2 purge and spare Two-2" for hot tap and psv.
Openings-removable head	none
Welded attachments	2 - lifting brackets 2 - saddles 1 - pushbar
Pressure relief devices	none

8. SPECIAL PROVISIONS:

- a. Damaged cylinders containing liquefied gases with vapor pressure exceeding 700 psig at 70°F are not authorized.
- b. The non-liquefied gases in damaged cylinders to be transported must be limited in pressure and volume so that if totally discharged into the salvage cylinder the pressure at 70°F will not exceed 700 psig.
- c. Each salvage cylinder must be plainly marked on both sides near the middle, in letters at least two (2) inches high on contrasting background "DOT-E 10372" and the words "SALVAGE CYLINDER".
- d. Each salvage cylinder must be labeled as prescribed for the material in the damage cylinder.
- e. Each salvage cylinder must be secured to the motor vehicle by a securement system that conforms to the requirements contained in §§ 393.100 through 393.106.
- f. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package or its contents and it is reoffered for transportation in conformance with this exemption and the HMR.
- g. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

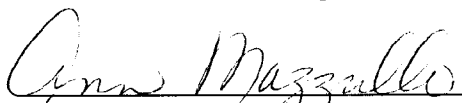
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

APR 25 2003

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: AM